

The parties also agree that Plaintiff's counsel's attorneys' fees are "fair and reasonable" and that Plaintiff's counsel "spent hours in prosecuting this action." (Motion, p. 18:23; p. 21:26.)

ANALYSIS:

The Court has various concerns about the proposed PAGA settlement.

1. It is not clear to the Court how much each Aggrieved Employee will receive from the proposed settlement. It appears that approximately 50% of the recovery will be devoted to individual PAGA payments, PAGA counsel's attorneys' fees, PAGA Litigation Expenses, a Service Award to Plaintiff and Administration Expenses.

2. The Court would like to know what are the maximum and minimum amounts to be received by the Aggrieved Employees, as well as the median and mean amounts to be received by the Aggrieved Employees.

3. It is not clear to the Court why Plaintiff should receive a Service Award of \$10,000. How much time did the Plaintiff devote to this case? Was Plaintiff deposed? How was the Service Award determined? How much additional compensation has Plaintiff received? (See Motion, p. 5:2-5.)

4. Although the proposed settlement amount of \$200,000 "represents approximately 19.2% of the non-stacking maximum penalty of \$1,042,500.00," the parties indicate that plaintiff's experts have calculated that Defendant's maximum stacking exposure would be \$3,932,400. The \$200,000 settlement is barely 5% of Defendant's maximum exposure. Is this fair and reasonable?

5. The parties state that "[i]n the context of mediation, Defendant represented through its counsel that it has experienced material financial difficulties that constrain its ability to fund a substantially larger settlement." (Motion, p. 18:4-7.) This statement seems to hide more than it reveals. The statement from defendant's counsel that defendant is having financial difficulties is mere hearsay; has this been confirmed by Plaintiff's counsel? Further, there is no indication in the Motion of defendant's current financial condition. What were defendant's gross and net earnings, profits, etc. during the past couple of years?

CONCLUSION:

Before the Court can approve this PAGA settlement, it would need to have the above questions answered. The Court continues the hearing on this motion until August 28, 2026 at 10:00 am in Dept. 6 for further briefing on this matter. Any additional briefs and/or declarations are to be filed at least 10 court days prior to the hearing.

4. CU0001696 WATSON, GEORGE vs. GENERAL MOTORS, LLC

The Court recuses itself from this case. The case is continued until July 31, 2026, at 10:00 am in Dept. 6.

5. CU002491

RAM, MALIN KUMAR VS. RODNEY ANDREWS ET AL

BACKGROUND AND SUMMARY OF PLEADINGS

Plaintiff's Motion

Plaintiff Malin Kumar Ram is applying for 1) and Order Appointing Receiver; 2) a Temporary Restraining Order; and 3) and OSC re Confirmation of the Appointment of a Receiver and Preliminary Injunction.

Plaintiff wishes a receiver appointed to “manage, oversee and possibly sell” three properties owned by Plaintiff. (Motion, p. 4:3-5.) According to the Plaintiff, Defendants Isaiah and Rodney Andrews “have failed to make required payments and comply with loan covenants. . .” (Motion, p. 4:6-8.) Plaintiff nominates Jackson Wyche of Receivership Specialists as the receiver. (Motion, p. 4:13-16.)

Plaintiff states that he believed that he would be the 100% vested owner of the property; in reality, the Grant Deed gave a 75% undivided interest to Defendant Isaiah Andrews and a 25% interest to Plaintiff. (Motion, p. 4:18-28.) On Sept. 19, 2023, Plaintiff signed a second Grant Deed transferring his 25% interest in the property to Defendant Isaiah Andrews. (Motion, p. 5:3-9.)

On January 24, 2024, Defendant Isaiah Andrews transferred the property to Defendant Dewey as a bona fide gift. (Motion, p. 5:11-13.) That same day, Defendant Dewey obtained a \$45,000 loan from Defendant Hasbun. (Motion, p. 5:16-17.) On April 28, 2025, Defendant Dewey transferred the property back to without executing a Deed of Reconveyance. The \$45,000 loan was never repaid by Defendant Dewey. (Motion, p. 5:22-25.)

Although the property was listed for sale several times, it was never sold. On May 1, 2024, Defendants Isaiah and Rodney Andrews began using the Property as a short-term Airbnb rental. Plaintiff has not received any accounting of the monies received. (Motion, p.6:2-5.)

By August 12, 2024, the loan on the Property was in default. (Motion, p. 7:8.)

Opposition by Defendants Isaiah and Rodney Andrews

The appointment of a receiver is a drastic remedy to be employed only when the property is “in danger of being lost, removed or materially injured.” (Opp., p. 6:10-12; CCP §564(b)(1).) Defendants argue that Plaintiff has not demonstrated that a less drastic remedy is unavailable “to preserve the status quo pending final judgment.” (Opp., p. 2:3-4.)

Defendants also argue that Plaintiff's delay in seeking relief shows that there is no true emergency. Defendants Andrews note that the real estate transaction occurred in 2022, the transfer issues occurred in 2024, and Plaintiff filed his lawsuit in December, 2025. However, he waited until June 2026 to request a receiver. (Opp., p. 11:8-18.)